



The Selectboard
TOWN OF WESTHAMPTON
TOWN HALL
1 SOUTH ROAD
WESTHAMPTON, MASSACHUSETTS 01027

Minutes of the Meeting - Westhampton Selectboard

Monday, March 28, 2022, at 7 PM

The Westhampton Selectboard scheduled a regular meeting on Monday, March 28, 2022, at 7 PM. Pursuant to Chapter 20 of the Acts of 2021, the meeting was held as a "hybrid" (in person and remote access) meeting. Some members of the board and the public attended the meeting via "Zoom" conferencing. Meeting ID Code: 8704 390 0582. In-person attendance by the public was permitted. The meeting was not recorded.

Call to Order

Call to Order – 7:01 PM

PRESENT IN PERSON: Phil Dowling, Maureen Dempsey, Bill Jablonski, Ben Warren, Sherry and John Bowler. PRESENT BY REMOTE: Teri Anderson, Mary Lou Burgess, Doug Finn

Department and Committee Updates

Highway (Bill Jablonski)

The North Road / Reservoir Road Bridge has been 'narrowed up' to one lane. Other work: repairs on dirt roads, including filling in muddy areas with stone; some welding on loader bucket to get some wear plates replaced.

Updates from the HRMC:

Community Eco Power (that runs burn plant in West Springfield) has filed for Chapter 11. Trash will be accepted only through April 14. USA Waste is presumed to buy the facility; Because of the change in ownership, DEP permits must be refiled, are in question, and may not be granted; trash will need to go elsewhere for the next couple of months; existing contracts will likely be vacated with the Chapter 11 filing; new trash facilities are being sought; prices per ton for MSW are uncertain at this time. Current price is \$85 / ton for MSW; likely will be \$85 - \$100 / ton.

Kathleen Casey's last day is April 1; the HRMC Board voted to allow Kathleen to act as consultant through April. New HRMC is Linda Cernik, who is the current Program Coordinator for Northern Berkshire Solid Waste Management District, and will continue in that role in addition to helming the HRMC.

Mr. Jablonski noted that there is money in the MSW budget to help cover increased costs; but that adjustments to the per-bag fee may need to be made, if disposal fees increase too drastically. Mr. Dowling requested that the board receive a breakdown of A/P for the Transfer Station for consideration.

Discussion about Compactor

Proposals for a replacement trash compactor were reviewed:

- McGuire – \$37,155 for new compactor and integration into existing setup.
- Wastequip - \$35,334.51 for new compactor; has not looked at the site. Additional installation of \$5,000.

- International Container - \$23,700 for compactor; \$34,100 includes container; \$38,700 with single-phase conversion.

Mr. Jablonski noted that McGuire is familiar with the site, has worked with town significantly in the past, and has a proven track record of quality of work and support. Mr. Jablonski recommended that the town accept the bid from McGuire. It was MOVED by Dowling, SECONDED by Dempsey: **to accept the bid for a MSW compactor from McGuire, having provided the best product and installation proposal at the best cost.**

Ms. Anderson: what is the source of the funding? Mr. Dowling: ARPA for the time being, with a town meeting warrant article for funding from free cash. There was some discussion relative to the timing of the decision making. Ms. Anderson also expressed concern about making too many purchases with ARPA Funds. Mr. Dowling AMENDED the motion, SECONDED by Dempsey, to add that **the purchase will be funded from ARPA, and a Town Meeting warrant article will be drafted for inclusion on the FY2023 Warrant.** VOTED: 3, 0, 0.

Health (Robby Armenti)

Ms. Armenti noted that the next Board of Health meeting will be on April 2. Ms. Armenti noted that more ‘professionalism’ and ‘regionalism’ at boards of health were being considered at the state level, with greater certification possibility being required, and higher rates of pay. The discussion is ongoing. Also: interviews are continuing for a new health agent, and a new staff is expected to be hired soon. Masks will be retrieved sometime after Saturday meeting.

Ms. Dempsey asked about recommendations regarding the mask policy for town buildings. Ms. Armenti noted no new guidance as of yet. Mr. Dowling suggested that masks being voluntary would make sense, and asked for an opinion. Ms. Armenti noted recent advancements (a new variant, second boosters for immunocompromised, etc.), but stated that, when she was out on the street in Westhampton, she was not concerned with masking; however, in stores, or busy streets, she wears masks. She noted that most folks opt to wear masks based on personal need. It was noted that schools no longer require masks as of March 21.

Ms. Armenti cited that, in her personal opinion, unless a new Covid variant created a new spike, she felt that masks could reasonably be made to be voluntary. Ms. Dempsey also suggested that masks should be voluntary. Ms. Anderson suggested that folks could use a break from the mandatory mask policy; however, a surge could happen, and the board should be prepared to change the policy if needed; Ms. Anderson also suggested that staff opinions should be considered. Mr. Dowling stated that he wears a mask in larger groups, or in larger public places; however, in smaller groups, or in larger spaces with few people, he usually does not wear a mask.

As an aside, the location of Town Meeting was briefly discussed, with the option to use HRS being held in reserve. The options for town meeting were briefly discussed.

After brief discussion: it was MOVED by Dowling, SECONDED by Dempsey: **to amend the building use policy to “recommend” mask use in town buildings; allow employees to request visitors to wear masks, keep occupancy numbers limited to 30 for non-municipal events, and extend the policy effective date to May 1.** VOTED: 3, 0, 0.

Public Safety Building (Phil Dowling)

Mr. Dowling noted that progress on the building had been proceeding slowly, with only three workers on site. Mr. Dowling briefly described the process of construction. A

meeting on March 29 with the contractor is intended to reinforce the strictness of certain schedule benchmarks; another meeting is hoped to be held on March 30 with the architect in order to address outstanding costs that are the result of conflicting elements of the building design.

Mr. Dowling noted that the original contract had a timeline mandate of 240 days, which has already been past. The past history of the project was briefly outlined, including a number of factors that led to delays in the project, including delays in delivery of construction material due to the pandemic, increases in costs due to the pandemic, and change orders due to errors or omissions in the original designs. General causes for change orders were briefly noted. Mr. Dowling noted his frustration with the project's progress, and the obstacles to its completion.

MVP (Teri Anderson)

Ms. Anderson noted that the Open Spaced Community Survey was complete, with about 260 responses in hand. A focus-group meeting was held with regional experts on open-space planning. An open public meeting on the Open Space Plan will be held on April 6 at the library, at 6:30 PM (Mr. Finn will post on the Town's website home page as a news item). The project will continue in May with land use, transportation, development, and other topics. The Open Space Plan is hoped to be submitted to the state by June 30.

Inclusion Training

Training sessions will be held May 18 through May 23. Attendance at daytime versus evening sessions are likely to be relatively even, but some preference to the evening sessions is anticipated.

Old Business

Ongoing discussion / deliberation on possible ARPA funded projects

Mr Dowling reviewed past approved projects, and current use. Mr. Dowling also reviewed the history of use of CARES funding, and the various efforts to better use the full amount of CARES funding for its intended purposes.

The board will continue to review requests for use.

Second Draft: Town Meeting Warrant

A second draft of the Town Meeting Warrant was presented for review. No discussion or comment.

Second Draft: Town Report

Mr. Finn noted that progress on the Town Report was ongoing, and was hoping to have a final revision wrapped up within a week or so.

New Business

Financial Management Review from DLS

There was discussion regarding the "Financial Management Review" prepared by the Massachusetts Department of Revenue, Division of Local Services ("DLS") and the various recommendations given; Mr. Dowling suggested that the recommendations aligned with conversations the town has had over the past few years. The board agreed that more conversations should commence with the Finance Committee and other parties.

Speed Feedback Sign MOU

The board reviewed a draft MOU for the grant-funded "Speed Feedback" sign. After brief review, it was MOVED by Dowling, SECONDED by Dempsey, **to approve the MOU as**

presented, and to authorize Mr. Dowling to sign on behalf of the board. Voted: 3, 0, 0.

There was scattered discussion related to speeds on Route 66, and how to manage or reduce speeds. Mr. Dowling suggested that DOT could be petitioned to conduct a speed study for the road, and to help to reinforce the speed limit.

Speed limits on other roads were discussed. Mr. Jablonski noted that MassDOT needs to be consulted prior to changing any speed limits on any road.

Tag Sale Policy – First Reading (no action requested)

Mr. Finn requested that no action be taken, as more research needed to be conducted prior to reconsideration. Ms. Anderson requested that the matter be taken up at a later meeting for discussion.

News / Correspondence

CoMIRS Grant Award

Chief White noted that the CoMIRS grant will help to pay for upgrades to the radios. Mr. Dowling: Should the capital planning number be removed completely? Chief White: \$7,500 for the base station for the new facility should remain in the capital plan; however, future upgrades will need to be factored into future years' budgets.

Mr. Dowling: is there something that you would want to address at Town Meeting regarding policing hours or staffing?

Chief White: As we move forward, we have some infrastructure that we're working towards; I've asked the finance committee to increase the pay for the part-time officers. However, the part-time academies are no longer available, which means part-time officers will have a harder time training officers. It's important to be sure that the town is hiring – and retaining quality officers.

Mr. Dowling: given the mandates from the state, and the pressures to get staff trained, will the state reverse their decision?

Chief White: I doubt it. The reform is, largely, a great move; the significant concern is that the efforts to reform policing may have significant harm on small-town policing efforts.

Ms. Anderson: perhaps we need to schedule a conversation with our state reps?

It was **MOVED** by Dowling, **SECONDED** by Anderson **to approve the CoMIRS MOU when prepared, and to authorize Dowling to sign on behalf of the board.** 3, 0, 0.

Letter from Rep. Lindsay Sabadosa

A letter from Rep Sabadosa, dated March 16, 2022, was reviewed. The board agreed to invite Rep Sabadosa to the next meeting on April 11, 2022.

Review / Approve Minutes – from March 14, 2022

After review, the matter was tabled to the next regular meeting.

Review of Payroll and A/P Warrants

After review, it was **MOVED** by Dowling, **SECONDED** by Dempsey, **to approve Payroll and A/P warrants as presented.** 3, 0, 0.

Other items not reasonably anticipated at time of posting

Mr. Ben Warren, Town Moderator brought, the board up to speed on plans for the Town Meeting, including presentation of materials, the use of technology, and the location of

Town Meeting. Some of the details were discussed and considered.

Appointment to open Space and Recreation:

At the request and with the recommendation of Ms. Laurie Sanders, chair of the Open Space and Recreation Plan Committee, it was MOVED by Dowling, SECONDED by Dempsey, **to appoint George Graham, Ali Jenkins, Dale Kasal, Jessica Lerman, Kate Moloney and John Zimmerman to the Open Space Recreation Plan committee.**

Voted: 3, 0, 0.

Set date for next meeting: Monday, April 11, 2022, 7 PM

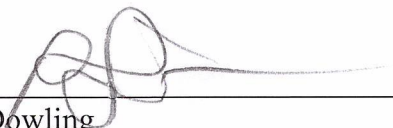
Mr. Dowling scheduled the next meeting for April 11, 2022, 7 PM. It was noted that the Town Caucus would be on the same day, 6 PM, but would likely conclude prior to 7 PM.

Adjourn

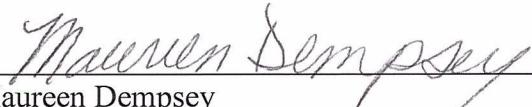
It was MOVED by Dowling, SECONDED by Dempsey **to adjourn.** WITHOUT OBJECTION. Adjourned at 9:04 PM.

Respectfully submitted,
Douglas C. Finn.

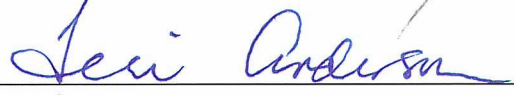
• **Approved** by a vote of the Selectboard at a regular meeting, held on April 11, 2022.



Phil Dowling



Maureen Dempsey



Teri Anderson